CORRECTION SUBMISSION TO THE DIVISION OF CRIMINAL JUSTICE SERVICES

THIS IS A LETTER TO A STATE AGENCY ABOUT ITS OWN RECORD. IT IS NOT A MOTION, A PETITION OR AN APPLICATION, AND IT IS NOT FILED WITH ANY COURT.

TO: NEW YORK STATE DIVISION OF CRIMINAL JUSTICE SERVICES - RECORD REVIEW UNIT

Address the Record Review Unit receives record correspondence at:
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FROM: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31
Mailing address: 1188 Upper Chenango Bridge Crossing Road, Apartment 14B, Binghamton, New York 13901-2214
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RE: CORRECTION OF A CRIMINAL-HISTORY RECORD - AUTOMATIC PARTIAL SEALING UNDER CPL Sec. 160.55

Docket or case number of the case, as printed on the certificate of disposition:
.....

Name of the court that disposed of the case:
.....

Date of the disposition:
.....

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, am the subject of the criminal-history record. Enclosed is a certified disposition for the case identified above. The disposition is one that CPL Sec. 160.55 seals automatically.

2. My criminal-history result still shows this case. What it shows, and the date of the result:

.....
.....

3. WHAT I AM ASKING DCJS TO DO. Correct the criminal-history record so that it reflects the automatic partial sealing of this case under CPL Sec. 160.55.

4. Please tell me in writing what was corrected, and on what date.

DATE ..... SIGNATURE OF WRITER .....

(The writer signs and dates this letter personally. Nothing on this page is signed or dated for the writer.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Chenango Bridge Crossing Road, Apartment 14B, Binghamton, New York 13901-2214

ENCLOSED: the certified disposition for the case identified above.

WHO HOLDS WHAT, WHAT IT COSTS, AND WHAT YOU DO NOT FILE

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE ONE THING TO READ FIRST

CPL Sec. 160.55 DOES NOT SEAL THE COURT FILE. The recorded rule is that qualifying violations may disappear from common DCJS-based criminal-history results while the courthouse file remains publicly inspectable. Nobody may promise you that an ordinary Sec. 160.55 violation will receive full court-file sealing through Sec. 160.55, and this packet does not.

WHAT THIS IS, AND WHAT YOU DO NOT FILE

CPL Sec. 160.55 provides automatic partial sealing when a criminal action terminates in a qualifying violation or traffic-infraction conviction, unless the prosecutor or court timely establishes that the interests of justice require otherwise. For a post-November 1, 1991 qualifying disposition the participant ordinarily FILES NOTHING; the clerk notifies DCJS and the appropriate law-enforcement agencies.
So you file no motion, no petition, no application and no proposed order. This packet is the DCJS submission for the case where the automatic seal did not reach the record; the preceding sentencing-court request is supplied by its separate route family.

WHO HOLDS WHAT

The court that disposed of your case holds the court record and originates the sealing notice. DCJS holds the statewide criminal-history record that most background checks run against. Each corrects only its own record, which is why the recorded workflow goes to both, in this order: obtain a certificate of disposition, check the official criminal-history result, ask the sentencing court to transmit or correct the sealing notice, then send the certified disposition to DCJS for correction.

WHAT IT COSTS

The sealing itself: $0, and no filing, because there is no filing. The compiled New York profile this route is built on states it in its own fee table - "Automatic sealing (160.50/160.55/Clean Slate) $0 No filing".
Certificate of disposition: $5 per case outside New York City, $10 per case within the five boroughs, from the same profile. That is the issuing court's price for the certificate. Ask the records office of the court that will issue yours what it charges today.
DCJS record review: a DCJS fee applies and the profile records no amount for it. The DCJS Record Review Unit publishes what its own record review costs; ask it before you order one.
There is no fee waiver here because there is no filing fee to waive. If you cannot pay the certificate charge, ask the court's records office what it does for a person who cannot pay; legal-aid organisations and county district-attorney sealing units assist at no cost.

WHO ELSE HAS TO BE TOLD

Nobody. There is no opposing party, no district attorney to notify and no affidavit of service. Complete the

separate sentencing-court request first, then send this DCJS submission and keep dated proof.

WHEN TO STOP AND GET HELP

- the court previously entered an interests-of-justice order that the case would NOT be sealed - the recorded escalation is a motion or counsel;
- the disposition is from before November 1, 1991 - it may require a motion under the statute's legacy branch;
- what you want is the courthouse file sealed - Sec. 160.55 does not reach it;
- the case ended in something other than a violation or traffic infraction; CPL Sec. 160.57 Clean Slate is separate and is not reached through this route;
- either office refuses to correct the record;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

A DCJS correction submission authored from one recorded branch of CPL Sec. 160.55. Not a DCJS form - none is published for this - not a motion, petition or application, not filed anywhere, not legal advice, not sent for you, and not a promise that DCJS will correct anything.